SEC TECHNOEXPORTSTROY
versus
BEAK PECK ENTERPRISES (PRIVATE) LIMITED
and
SHERIFF OF THE HIGH COURT OF ZIMBABWE
and
REGISTRAR OF DEEDS

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE; 22 & 30 July 2026

Urgent Chamber Application

T L Mapuranga with S Noormohamed, for the applicant
T E Gumbo, for the 1st respondent
No appearance for the 2nd and 3rd respondents

CHIKOWERO J:

Introduction

[1] In a bid to mislead the Court to treat this matter as urgent, the applicant deliberately withheld material facts from the Court.

The parties

[2] The applicant is a company duly incorporated in terms of the laws of Bulgara. It is registered as a foreign company in Zimbabwe.

[3] The first respondent is a company incorporated in this country. The second and third respondents are the Sheriff of the High Court of Zimbabwe and the Registrar of Deeds respectively.

Urgency

[4] In Kuvarega v Registrar-General and Anor 1998(1) ZLR 188(H) CHATIKOBO J defined urgency at 193F:

> "What constitutes urgency is not only the imminent arrival of the day of reckoning, a matter is urgent, if at the time the need to act arises, the matter cannot wait."

See also Document *Support Centre (Pvt) Ltd* v *Mapuvire* 2006(2) ZLR 232(H) at 244D – E. Further, the applicant himself needs to have treated the matter as urgent. See *Madzivanzira and Ors* v *Dexpoint Investments (Pvt) Ltd and Anor* 2002(2) ZLR 316(H). In seeking to persuade the Court to treat the matter as urgent, the applicant must demonstrate good faith by making full disclosure of all material facts. See *Graspeak Investments (Pvt) Ltd* v *Delta Operations (Pvt) Ltd and Anor* 2001(2) ZLR SSI (H).

This application

[5] On 17 July 2026 the applicant filed the present application seeking the following interim relief:

> "Pending determination of this matter, the applicant is granted the following relief –
> 1) The first respondent shall not in any way alienate or encumber the property known as Lot 198 Highlands Estate of Welmoed which is presently registered in the name of Beak Peck Enterprises (Private) Limited.
> 2) The Third Respondent shall not register any transfer, mortgage or limited real right for the property known as Lot 198 Highlands Estate of Welmoed presently held under Deed of Transfer number DT 3255/26.
> 3) The Third Respondent shall endorse a caveat on Deed of Transfer number DT 3255/26."

[6] The applicant alleges that the need to act arose on 19 June 2026. In its own words, it says in the founding affidavit:

> "On 19 June 2026, the applicant came to know of a court application for its eviction from the property. The applicant on that Court Application is the First Respondent. It is at that point that the Applicant commenced an investigation into the facts which led to such a shocking application being served on it.
> The Applicant discovered that the First Respondent, represented by its director – one Amos Chisvo – purported and allegedly purchased the property from the Applicant on the 10th September 2018. The First Respondent had relied on an alleged and purported written agreement of sale in terms of which the Applicant was allegedly represented by a certain Ludmil Leonidov Jordanov. The First Respondent purported to have receipts for payment of the purchase price pursuant to the alleged and purported agreement of sale. The First Respondent then sued the Applicant for specific performance and transfer of title under case number HCH 833/26. This resulted in default judgment being granted in favour of the First Respondent."

[7] The property referred to at para 6 of this judgment is Lot 198 Highlands Estate of Welmoed. The applicant is saying that on 19 June 2026 it was served with a Court application for eviction from its own property. Shocked, this triggered an investigation by it to establish why

this was so. The result of the investigation was the discovery of the fact that the first respondent had used a forged agreement of sale and false receipts of payment of "the purchase price" to sue the applicant for transfer of title in the property from the applicant in favour of the first respondent. Since the applicant was not aware of the matter wherein transfer of tittle was sought, the first respondent obtained default judgement. Thereafter, the first respondent, again without the knowledge of the applicant, had managed to obtain registration of title in the property in its favour. The applicant filed an application for rescission of the default judgement on 14 July 2026. Pending the determination of that application it then, three days later, filed the present application .In a nutshell, the applicant says the matter is urgent because it did not sit on its laurels between 19 June 2026 and 17 July 2026.What it says it did has already been set out in this judgement.

The material non disclosure

[8] On 24 March 2026, Beak Peck Enterprises (Private) Limited, as applicant, filed an urgent court application under case number HCH 1410/26 against Sec Technoexportstroy, the Sheriff of the High Court of Zimbabwe and the Registrar of Deeds claiming the following relief:

> "1. The application for an interdict be and is granted.
> 2. Pending finalisation of the matter in HCH 833/26 the first respondent shall not dispose of the property known as Lot 198 Highlands Estate of Welmoed measuring 1.6638 hectares held under Deed of Transfer No 5697/80
> 3. The second respondent shall place a caveat on Deed of Transfer No 5697/80 with respect to the immovable property mentioned in paragraph 2 of this order upon service of this order.
> 4. The first respondent shall pay costs of suit."

[9] On 27 March 2026 the Court postponed the matter to 1 April 2026 at 3:15pm for a physical hearing. It directed Beak Peck Enterprises (Private) Limited, who was the applicant, to serve hard copies of the notice of hearing for 1 April 2026 at 3:15 pm on each respondent and to file proof of such service before the next Court date. Mr *Gumbo*, who represented the applicant, duly instructed the Sheriff to comply with the Court order .There was no appearance for all the respondents on 27 March 2026.

[10] Indeed, on 31 March 2026 the Sheriff served copies of the notice of hearing on all the respondents. As regards service of the same on Sec Technoexportstroy, the return of service reads in relevant part:

> "Copy of notice of hearing served on Ms Milanzi a wife to the caretaker who accepted service on behalf of the first respondent at 11:36 hrs at the address for service. Set down date 01/04/26 at 14 15 hrs"

[11] On 1 April 2026 Mr Milanzi appeared before the Court. Without producing anything to prove that he was authorised to represent the then first respondent all that he stated, orally, was that he was in the employ of that litigant. On that basis alone, he claimed that he was properly before the Court on behalf of the then first respondent. Needless to say, Mr *Gumbo* objected that Mr Milanzi was not properly before the Court. He stated the reasons why that was so. The Court upheld the objection. It gave brief reasons for the ruling. Although Mr Milanzi remained in attendance throughout the hearing, including the pronouncement by the Court of the order sought in the urgent court application the Court proceeded on the basis that the application was unopposed. On 1 April 2026 the court granted the application in the terms set out at para 8 of this judgement.

[12] The entire court application under case number 1410/26 and the outcome thereof is what the present applicant did not disclose in its founding papers. I have said the notice of hearing in that matter was served on Milanzi's wife by the Sheriff on 31 March 2026. Pursuant to that Milanzi himself, a caretaker in the employ of the present applicant appeared before the court as way back as 1 April 2026 itching to make submissions on behalf of his employer. The result of those effort are now known. Besides not adverting to all this in its founding affidavit and the certificate of urgency the applicant did not place any affidavit before me, deposed to by Milanzi, to explain his interaction with the applicant (his employer) relative to case number HCH 1410/26 and its outcome from the time that the application was served, through 1 April 2024, 19 June 2026 and 17 July 2026. A reading of para 6 of this judgment demonstrates that the applicant is deliberately vague on how it came to know of the court application for eviction. I am satisfied that the vagueness is deliberate. It is designed to mislead the court to treat the matter as urgent. The applicant intentionally did not disclose Milanzi's involvement in the matter under case number HCH 1410/26 because it realized that to do so would prove that it was not on 19 June

2026 that it realized, for the first time, that the first respondent had dragged it to court over the same property. For reasons not disclosed, the applicant did not treat the matter as urgent. In the circumstances, there is no way that the court can treat the same matter on an urgent basis.

[13] The need to discuss the second preliminary point raised by the first respondent as well as the merits of the matter does not arise.

ORDER

1. The preliminary point is upheld.
2. The matter is not urgent.
3. The matter be and is struck off the roll of urgent matters.
4. The applicant shall pay the first respondent's costs of suit.

CHIKOWERO J:……

Ahmed and Ziyambi, applicant's legal practitioners
Chiwawa Law Chambers, first respondent's legal practitioners